

		Counsel for the Receiver is to submit proposed orders and is to give notice of these rulings.
2	30-2021-01214897 Veliz vs. Hyundai Motor America	Off Calendar
3	30-2021-01229674 Steichen vs. Joseph-Brown	A) Demurrers to Second Amended Complaint (“SAC”) Before the court are two demurrers to plaintiff David Steichen’s (“Plaintiff”) Second Amended Complaint (“SAC”). Though the demurrers were filed separately by defendants Bradley David Hatfield, M.D., (“Hatfield” individually) and Ahmed Badr, M.D. (“Defendants” with Hatfield for purposes of this ruling), they are both based upon the same argument that the allegations against Defendants are barred by the applicable statute of limitations. As such, the arguments and oppositions are essentially identical and the court will issue a combined ruling as to both Defendants’ demurrers. Pursuant to Civ. Proc. Code §§ 430.10(e) and 340.5, both demurrers are SUSTAINED without leave to amend. “A complaint showing on its face the cause of action is barred by the statute of limitations is subject to general demurrer.” (<i>Iverson, Yoakum, Papiano & Hatch v. Berwald</i> (1999) 76 Cal. App. 4th 990, 995.) “In an action for injury or death against a health care provider based upon such person's alleged professional negligence, the time for the commencement of action shall be three years after the date of injury or one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the injury, whichever occurs first. . .” (Civ. Proc. Code § 340.5.) Plaintiff received emergency surgery to remove/treat purported colon cancer on 09/11/20. (SAC ¶ 2.) Plaintiff became aware of the misdiagnosis of colon cancer in March 2021. (SAC ¶ 10.) Plaintiff therefore had one-year from March 2021 (the lesser of the two limitation periods) to file his complaint in this action. Plaintiff’s initial complaint was timely filed on 11/02/21. Plaintiff added Defendants to this action on 02/08/23. (ROA #118.)